

HOUSE No. 576

The Commonwealth of Massachusetts

PRESENTED BY:

Brandy Fluker-Reid

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to reduce exclusionary discipline for violations of rules related to student grooming and dress.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Brandy Fluker-Reid</i>	<i>12th Suffolk</i>	<i>1/15/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/6/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/6/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/24/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>4/1/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>4/1/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>4/1/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>7/8/2025</i>

HOUSE No. 576

By Representative Fluker-Reid of Boston, a petition (accompanied by bill, House, No. 576) of Brandy Fluker-Reid and others relative to exclusionary discipline for violations of rules related to student grooming and dress. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4400 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to reduce exclusionary discipline for violations of rules related to student grooming and dress.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 37H of Chapter 71 as appearing in the 2020 Official Edition is
2 hereby amended by inserting after subsection (g) the following:-

3 (h) Any rules related to student dress or grooming included in a school district or charter
4 school's code of student conduct or otherwise adopted by the school district or charter school
5 shall (1) make no distinction, discrimination, or restriction on account of sex or gender identity
6 (2) not treat students differently or have a disparate impact on any student based on that student's
7 race, national origin, religion, disability, age, sexual orientation, or gender identity (3) be clear,
8 specific, and objective in defining terms, if used; (4) prohibit any school district or charter
9 school employee from enforcing any rules related to student grooming and dress by direct

physical contact with a student or a student's attire; and (5) prohibit any school district or charter school employee from requiring a student to undress in front of any other individual, including the enforcing school district or charter school employee, to comply with the rules related to dress or grooming. Nothing in this section shall limit the rights students are already permitted under Chapter 71, Section 82 of 21 Massachusetts General Laws or any other state or federal laws relating to a student's right to freedom of expression.

SECTION 2. Section 37H $\frac{3}{4}$ of Chapter 71 as appearing in the 2020 Official Edition is hereby amended by inserting as the last sentence of subsection (a) the following -: In addition to any rights students may have, in no cases may a school district or charter school suspend a student solely on the basis of an alleged violation of rules related to student dress and grooming, provided however that a school district or charter school may require students to wear clothing of a specific color, and provided further that nothing herein shall limit school districts or charter school from taking action to prevent bullying of any student as defined in M.G.L Chapter 70, section 370 or harassment of any student on account of race, color, sex, gender identity, religion, national origin, or sexual orientation.

SECTION 3. The changes detailed in Sections 1 and 2 shall take effect 60 days after passage of this act.

SECTION 4. The Department of Elementary and Secondary Education shall adopt, promulgate, amend and rescind rules and regulations or formulate policies and recommendations as necessary, including training, to effectuate the purpose of Sections 1 and 2